NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- II)

C.A.(CAA)-52/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION :

AMONGST

RG FINSEC PRIVATE LIMITED

... Applicant No.1/Transferor Company

AND

TIA ENTERPRISES PRIVATE LIMITED

...Applicant No.2/ Transferor Company

WITH

SHIELD FINANCE PRIVATE LIMITED

..Applicant No. 3/Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on : 28.04.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH.ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

SH. L.N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : CS Rahul Jain

ORDER

PER SHRI L.N. GUPTA, MEMBER (T)

Under consideration is the Application No. C.A.(CAA)52/ND/2021 filed under Sections 230 to 232 of the Companies Act, 2013 by the Applicant Companies. The prayer made is to dispense with convening and holding of the meeting of Shareholders and Creditors in relation to the Transferor and Transferee Companies for approval of the 'Scheme of Amalgamation'.

2. That from perusal of the Petition & records on the DMS, it is observed that the Applicant Companies have not filed their Affidavits in compliance of the provisions of Section 230(2)(a) of the Companies Act, 2013.

3 The Applicant Companies are, therefore, directed to comply with the provisions of Section 230(2)(a) of Companies Act 2013, by filing the requisite Affidavit individually within 2 weeks from today by disclosing, inter alia, the pendency of any investigation or proceedings against the Applicant Companies.

4. **The matter is accordingly de-reserved.** List the matter on 24.05.2021.

-Sd-

(L.N. Gupta)
Member (T)

-Sd-

(Abni Ranjan Kumar Sinha)
Member (J)